

IN THE FAMILY COURT OF Karachi
(Family Court)

SUIT NO. _____ OF 2024

APPLICANT: [TO BE PROVIDED]

CNIC: [TO BE PROVIDED]

Address: [TO BE PROVIDED]

VERSUS

RESPONDENT: [TO BE PROVIDED]

CNIC: [TO BE PROVIDED]

Address: [TO BE PROVIDED]

APPLICATION FOR MAINTENANCE (NAFAQA/KHARCHA)

UNDER: Section 9, Muslim Family Laws Ordinance 1961

RESPECTFULLY SHEWETH:

1. RELATIONSHIP:

That the Applicant and Respondent are lawfully married since [TO BE PROVIDED]. The Nikah Nama is attached as Exhibit-A.

2. CHILDREN:

One son

3. DEFAULT IN MAINTENANCE:

That the Respondent has failed and neglected to provide maintenance to the Applicant since [TO BE PROVIDED] without any lawful excuse, in violation of his legal and religious obligation.

4. MONTHLY EXPENSES:

That the monthly expenses of the Applicant and children are approximately Rs. [TO BE PROVIDED], the details of which are as under:

- House rent / accommodation: Rs. [TO BE PROVIDED]
- Food and daily expenses: Rs. [TO BE PROVIDED]
- Children school fees: Rs. [TO BE PROVIDED]
- Medical expenses: Rs. [TO BE PROVIDED]
- Other expenses: Rs. [TO BE PROVIDED]

5. RESPONDENT INCOME:

That the Respondent is [TO BE PROVIDED] and earns approximately Rs. [TO BE PROVIDED] per month.

6. LEGAL BASIS:

That under Section 9(1) of the Muslim Family Laws Ordinance 1961, where a husband fails to maintain his wife adequately, she may apply to the Chairman of the Arbitration Council. Under Section 9(3), arrears of maintenance may be recovered as arrears of land revenue.

7. ARREARS:

That arrears of maintenance from [TO BE PROVIDED] to [TO BE PROVIDED] amount to Rs. [TO BE PROVIDED].

PRAYER:

It is most respectfully prayed that this Honorable Court:

- (a) Order the Respondent to pay monthly maintenance of Rs. [TO BE PROVIDED] per month to the Applicant with effect from [TO BE PROVIDED];
- (b) Order recovery of arrears amounting to Rs. [TO BE PROVIDED];
- (c) [TO BE PROVIDED];
- (d) Direct that in case of default, arrears be recovered as arrears of land revenue per MFLO 1961 Section 9(3);
- (e) Grant any other relief deemed just.

VERIFICATION:

I, [TO BE PROVIDED], do hereby solemnly affirm that the contents of this application are true and correct.

DOCUMENTS ATTACHED:

- ☐ Nikah Nama — Exhibit A
- ☐ CNIC copies — Exhibit B
- ☐ Children Birth Certificates — Exhibit C
- ☐ Proof of expenses (if any) — Exhibit D
- ☐ [TO BE PROVIDED]

_____ Date: October 26, 2023
Applicant's Signature Place: Karachi

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